

1 ENGROSSED HOUSE
2 BILL NO. 3996

By: Worthen and Caldwell (Trey)
of the House

3 and

4 Howard of the Senate

5
6 [crimes and punishments - capital cases - Oklahoma
7 Indigent Defense System - payments - experts -
8 effective date]
9
10
11

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 22 O.S. 2021, Section 1089, as
14 amended by Section 4, Chapter 144, O.S.L. 2022 (22 O.S. Supp. 2025,
15 Section 1089), is amended to read as follows:

16 Section 1089. A. The application for post-conviction relief of
17 a defendant who is under the sentence of death in one or more counts
18 and whose death sentence has been affirmed or is being reviewed by
19 the Court of Criminal Appeals in accordance with the provisions of
20 Section 701.13 of Title 21 of the Oklahoma Statutes shall be
21 expedited as provided in this section. The provisions of this
22 section also apply to noncapital sentences in a case in which the
23 defendant has received one or more sentences of death.
24

1 B. The Oklahoma Indigent Defense System shall represent all
2 indigent defendants in capital cases seeking post-conviction relief
3 upon appointment by the appropriate district court after a hearing
4 determining the indigency of any such defendant. The System shall
5 contract with, and provide for reasonable payment of, experts as
6 necessary to provide effective representation. When the Oklahoma
7 Indigent Defense System or another attorney has been appointed to
8 represent an indigent defendant in an application for post-
9 conviction relief, the Clerk of the Court of Criminal Appeals shall
10 include in its notice to the district court clerk, as required by
11 Section 1054 of this title, that an additional certified copy of the
12 appeal record is to be transmitted to the Oklahoma Indigent Defense
13 System or the other attorney.

14 C. The only issues that may be raised in an application for
15 post-conviction relief are those that:

16 1. Were not and could not have been raised in a direct appeal;
17 and

18 2. Support a conclusion either that the outcome of the trial
19 would have been different but for the errors or that the defendant
20 is factually innocent.

21 The applicant shall state in the application specific facts
22 explaining as to each claim why it was not or could not have been
23 raised in a direct appeal and how it supports a conclusion that the
24

1 outcome of the trial would have been different but for the errors or
2 that the defendant is factually innocent.

3 D. 1. The application for post-conviction relief shall be
4 filed in the Court of Criminal Appeals within ninety (90) days from
5 the date the appellee's brief on direct appeal is filed or, if a
6 reply brief is filed, ninety (90) days from the filing of that reply
7 brief with the Court of Criminal Appeals on the direct appeal.

8 Where the appellant's original brief on direct appeal has been filed
9 prior to November 1, 1995, and no application for post-conviction
10 relief has been filed, any application for post-conviction relief
11 must be filed in the Court of Criminal Appeals within one hundred
12 eighty (180) days of November 1, 1995. The Court of Criminal
13 Appeals may issue orders establishing briefing schedules or enter
14 any other orders necessary to extend the time limits under this
15 section in cases where the original brief on direct appeal has been
16 filed prior to November 1, 1995.

17 2. All grounds for relief that were available to the applicant
18 before the last date on which an application could be timely filed
19 not included in a timely application shall be deemed waived.

20 No application may be amended or supplemented after the time
21 specified under this section. Any amended or supplemental
22 application filed after the time specified under this section shall
23 be treated by the Court of Criminal Appeals as a subsequent
24 application.

1 3. Subject to the specific limitations of this section, the
2 Court of Criminal Appeals may issue any orders as to discovery or
3 any other orders necessary to facilitate post-conviction review.

4 4. a. The Court of Criminal Appeals shall review the
5 application to determine:

6 (1) whether controverted, previously unresolved
7 factual issues material to the legality of the
8 applicant's confinement exist,

9 (2) whether the applicant's grounds were or could
10 have been previously raised, and

11 (3) whether relief may be granted under the Post-
12 Conviction Procedure Act.

13 b. For purposes of this subsection, a ground could not
14 have been previously raised if:

15 (1) it is a claim of ineffective assistance of trial
16 counsel involving a factual basis that was not
17 ascertainable through the exercise of reasonable
18 diligence on or before the time of the direct
19 appeal, or

20 (2) it is a claim contained in an original timely
21 application for post-conviction relief relating
22 to ineffective assistance of appellate counsel.

1 All claims of ineffective assistance of counsel shall be governed by
2 clearly established law as determined by the United States Supreme
3 Court.

4 If the Court of Criminal Appeals determines that controverted,
5 previously unresolved factual issues material to the legality of the
6 applicant's confinement do not exist, or that the claims were or
7 could have been previously raised, or that relief may not be granted
8 under the Post-Conviction Procedure Act and enters an order to that
9 effect, the Court shall make findings of fact and conclusions of law
10 or may order the parties to file proposed findings of fact and
11 conclusions of law for the Court to consider on or before a date set
12 by the Court that is not later than thirty (30) days after the date
13 the order is issued. The Court of Criminal Appeals shall make
14 appropriate written findings of fact and conclusions of law not
15 later than fifteen (15) days after the date the parties filed
16 proposed findings.

17 5. If the Court of Criminal Appeals determines that
18 controverted, previously unresolved factual issues material to the
19 legality of the applicant's confinement do exist, and that the
20 application meets the other requirements of paragraph 4 of this
21 subsection, the Court shall enter an order to the district court
22 that imposed the sentence designating the issues of fact to be
23 resolved and the method by which the issues shall be resolved.

1 The district court shall not permit any amendments or
2 supplements to the issues remanded by the Court of Criminal Appeals
3 except upon motion to and order of the Court of Criminal Appeals
4 subject to the limitations of this section.

5 The Court of Criminal Appeals shall retain jurisdiction of all
6 cases remanded pursuant to the Post-Conviction Procedure Act.

7 6. The district attorney's office shall have twenty (20) days
8 after the issues are remanded to the district court within which to
9 file a response. The district court may grant one extension of
10 twenty (20) days for good cause shown and may issue any orders
11 necessary to facilitate post-conviction review pursuant to the
12 remand order of the Court of Criminal Appeals. Any applications for
13 extension beyond the twenty (20) days shall be presented to the
14 Court of Criminal Appeals. If the district court determines that an
15 evidentiary hearing should be held, that hearing shall be held
16 within thirty (30) days from the date that the state filed its
17 response. The district court shall file its decision together with
18 findings of fact and conclusions of law with the Court of Criminal
19 Appeals within forty-five (45) days from the date that the state
20 filed its response or within forty-five (45) days from the date of
21 the conclusion of the evidentiary hearing.

22 7. Either party may seek review by the Court of Criminal
23 Appeals of the district court's determination of the issues remanded
24 by the Court of Criminal Appeals within ten (10) days from the entry

1 of judgment. Such party shall file a notice of intent to seek
2 review and a designation of record in the district court within ten
3 (10) days from the entry of judgment. A copy of the notice of
4 intent to seek review and the designation of the record shall be
5 served on the court reporter, the petitioner, the district attorney,
6 and the Attorney General, and shall be filed with the Court of
7 Criminal Appeals. A petition in error shall be filed with the Court
8 of Criminal Appeals by the party seeking review within thirty (30)
9 days from the entry of judgment. If an evidentiary hearing was
10 held, the court reporter shall prepare and file all transcripts
11 necessary for the appeal within sixty (60) days from the date the
12 notice and designation of record are filed. The petitioner's brief-
13 in-chief shall be filed within forty-five (45) days from the date
14 the transcript is filed in the Court of Criminal Appeals or, if no
15 evidentiary hearing was held, within forty-five (45) days from the
16 date of the filing of the notice. The respondent shall have twenty
17 (20) days thereafter to file a response brief. The district court
18 clerk shall file the records on appeal with the Court of Criminal
19 Appeals on or before the date the petitioner's brief-in-chief is
20 due. The Court of Criminal Appeals shall issue an opinion in the
21 case within one hundred twenty (120) days of the filing of the
22 response brief or at the time the direct appeal is decided. If no
23 review is sought within the time specified in this section, the
24 Court of Criminal Appeals may adopt the findings of the district

1 court and enter an order within fifteen (15) days of the time
2 specified for seeking review or may order additional briefing by the
3 parties. In no event shall the Court of Criminal Appeals grant
4 post-conviction relief before giving the state an opportunity to
5 respond to any and all claims raised to the Court.

6 8. If an original application for post-conviction relief is
7 untimely or if a subsequent application for post-conviction relief
8 is filed after filing an original application, the Court of Criminal
9 Appeals may not consider the merits of or grant relief based on the
10 untimely original application, or a subsequent application, unless:

11 a. the application contains claims and issues that have
12 not been and could not have been presented previously
13 in a timely original application or in a previously
14 considered application filed under this section,
15 because the legal basis for the claim was unavailable,
16 or

17 b. (1) the application contains sufficient specific
18 facts establishing that the current claims and
19 issues have not and could not have been presented
20 previously in a timely original application or in
21 a previously considered application filed under
22 this section, because the factual basis for the
23 claim was unavailable as it was not ascertainable
24

1 through the exercise of reasonable diligence on
2 or before that date, and

3 (2) the facts underlying the claim, if proven and
4 viewed in light of the evidence as a whole, would
5 be sufficient to establish by clear and
6 convincing evidence that, but for the alleged
7 error, no reasonable fact finder would have found
8 the applicant guilty of the underlying offense or
9 would have rendered the penalty of death.

10 The provisions of this paragraph shall apply irrespective of the
11 nature of the claims raised in the application and shall include
12 jurisdictional claims. The provisions of this paragraph shall also
13 apply to any post-conviction application filed on or after ~~the~~
14 ~~effective date of this act~~ November 1, 1987.

15 9. For purposes of the Post-Conviction Procedure Act, a legal
16 basis of a claim is unavailable on or before a date described by
17 this subsection if the legal basis:

- 18 a. was not recognized by or could not have been
19 reasonably formulated from a final decision of the
20 United States Supreme Court, a court of appeals of the
21 United States, or a court of appellate jurisdiction of
22 this state on or before that date, or
23 b. is a new rule of constitutional law that was given
24 retroactive effect by the United States Supreme Court

or a court of appellate jurisdiction of this state and
had not been announced on or before that date.

E. All matters not specifically governed by the provisions of this section shall be subject to the provisions of the Post-Conviction Procedure Act. If the provisions of this section conflict with the provisions of the Post-Conviction Procedure Act, the provisions of this section shall govern.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 4th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate